

25STCV20356 25STCV20356

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 13, 2026

CASE NUMBER

25STCV20356

MOTION

Motion for Leave to Amend Complaint

MOVING PARTY

Plaintiff Heather Steinman

OPPOSING PARTIES

Defendants Flywheel, LLC, Dan Chuba, Vanessa Choy, and Don
McGregor

MOTION

Plaintiff

Heather Steinman ("Plaintiff") moves for leave to file a second amended complaint. Defendants Flywheel, LLC, Dan Chuba, Vanessa

Choy, and Don McGregor ("Defendants") oppose the motion.

ANALYSIS

Under Code of

Civil Procedure section 473, subdivision (a)(1), "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by the code." Thus, the Court

has wide discretion to allow either party to amend pleadings upon any terms as may be just. Judicial policy favors

resolution of all disputed matters between the parties and, therefore, leave to amend is liberally granted. (Berman

vs. Bromberg (1986) 56 Cal.App.4th 936, 945.) "[I]t is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (Kittredge Sports Co.

v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.)

Under California

Rules of Court, rule 3.1324(a), a motion to amend a pleading must include a copy of the proposed amendment and state the allegations the moving party proposes to add or delete. This rule also requires the moving party to submit a declaration stating the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier.

In this regard, Plaintiff

relies on the declaration of Plaintiff's counsel, Matthew Follett ("Counsel") who states Plaintiff seeks to add seven new causes of action and to add additional factual allegations in support of the new causes of action, as well as the original causes of action.

(Declaration of Matthew Follett, ¶¶ 3-4.) The evidence before the Court suggests Plaintiff could have asserted the claims at issue in connection with the original complaint.

In opposition,

Defendants argue Plaintiff's notice of motion is defective. Plaintiff's notice of motion accurately states Plaintiff seeks leave to file a second amended complaint, and Plaintiff cites authority on which Plaintiff seeks that relief.

Nothing more is required. (See, e. g., Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"].)

Defendants also contend

Plaintiff cannot amend to state a new theory of liability. Defendants are incorrect. Defendants rely on *Klopstock v. Superior Court* (1941) 17 Cal.2d 13 (*Klopstock*), in which the Supreme Court of California considered the issue of whether an amended complaint relates back to the filing date of the original complaint for purposes of the statute of limitations. (*Id.* at p. 20.) *Klopstock* does not concern the propriety of amendment.

Defendants then

maintain the mootness of their demurrer to the first amended complaint is prejudicial such that the Court should deny amendment. Defendants are incorrect. Defendants may challenge the second amended complaint once it has been filed and served.

Likewise, Defendants' argument that judicial economy favors ruling on the demurrer to the first amended complaint prior to permitting filing of the second amended complaint is incorrect. It is more efficient for the Court to permit amendment rather than ruling on the demurrer to a superseded pleading.

Accordingly, given

no trial date has been set for this case and discovery remains open, the Court finds the policy in favor of resolving all disputes between Plaintiff and Defendants in one action outweighs any prejudice to Defendants that might occur from permitting the amendment. Therefore, the motion is granted.

CONCLUSION AND ORDER

Plaintiff's

motion to file a second amended complaint is granted. Plaintiff is to separately file and serve the pleading forthwith. Defendant will have statutory time to respond to the second amended complaint based on such service.

Plaintiff is to

give notice of the Court's ruling and to file proof of service of same.